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W I L L

by

BRENDA MARY POUND

2026

ADAH/STP/ANO/PO22899.0001

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I, BRENDA MARY POUND residing at Rowanbank, Thimblerow, Dunning, Perth, PH2 0RT in order to settle the succession to my estate after my death provide as follows:-

1. REVOCATION

I revoke all prior Wills and testamentary writings and authorise my Solicitors to destroy them.

2. TRUSTEES AND EXECUTORS

- 2.1 I appoint my husband, KIEREN MATTHEW POUND residing with me ("Kieren"), my son, MATTHEW JOHN POUND residing at 13 Mattocks Road, Wellbank, Broughty Ferry, Dundee, DD5 3PJ ("Matthew"), and my son THOMAS ELLIOT POUND residing at 75 High Street, Tillicoultry, FK13 6AA ("Thomas"), to be my trustees and executors.
- 2.2 The executor and trustee or executors and trustees acting under my Will, along with any other persons who may be appointed or assumed, are referred to as "my Trustees".

3. DEBTS

I direct my Trustees to pay all my debts, funeral expenses and the expenses of administering and winding up my estate.

4. INFORMAL WRITINGS

I direct my Trustees to give effect to any future writings subscribed by me however informal the same may be provided that in the opinion of my Trustees they clearly express my intentions.

5. LEGACIES

- 5.1 Any item or items specifically bequeathed in this or any future writings are expressly excluded from specific legacies of a general nature.
- 5.2 Unless specifically provided for by me in this or any future writings I bequeath all legacies free of government duties and of expenses and free of the cost of delivery or transfer, but without interest.
- 5.3 In implementing these provisions, my Trustees shall be the sole judges as to the identity of any asset specifically bequeathed and as to the nature and extent of the legacy; and the decision of my Trustees on all such matters shall be final and binding on all beneficiaries.
- 5.4 If a beneficiary is a body or an unincorporated association, the receipt of the Treasurer or other authorised official for the time being of that body or association shall be a sufficient discharge to my Trustees.
- 5.5 If any charitable beneficiary has changed its name, amalgamated with or transferred its assets to any other body, has been wrongly designed, or, in the sole discretion and opinion of my Trustees, is no longer an appropriate recipient to benefit from my estate, then my Trustees shall pay or apply such

Signature of Brenda Mary Pound

benefit to such charitable institution or charitable institutions which, in their sole opinion and discretion, most closely reflects my original intention.

6. SPECIFIC LEGACIES

I direct my Trustees to make over the following specific legacies:-

6.1 Legacy of Furniture

I bequeath to Kieren all my furniture, furnishings and plenishings, including pictures, paintings and photographs, and garden, garage and leisure articles of whatever nature, in or around the said house.

6.2 Liferent of Rowanbank and 5 Grey Row, Ruthvenfield, Perth

In the event of Kieren surviving me, then I direct my Trustees to hold my interest in Rowanbank, Thimble Row, Dunning, Perth, PH2 0RT, or my interest in such other house as may form my usual residence at my death, or which formed my last usual residence before I moved into a Residential Home, Nursing Home or the like and my interest in 5 Grey Row, Ruthvenfield, Perth, PH1 3JR, (hereinafter referred to as the "Liferented Fund") for the liferent use and enjoyment of Kieren, subject to the terms set out in Schedule 2.

6.3 Termination of Liferent

- (a) In the event of Kieren failing to survive me or on the termination or renunciation of the said liferent, in whole or in part, for any reason whatsoever, I direct my Trustees to make over the parts of my estate which were or would have been liferented to such of Matthew and Thomas, as shall survive me, equally between them if more than one.
- (b) Should Matthew or Thomas predecease me leaving descendants (including adopted descendants) who survive me, each member of a generation of descendants of such predeceasing child shall share equally in the part of my estate, both original and accresced, which would have fallen to their parent, where their parent has also predeceased me.
- (c) Should Matthew or Thomas predecease me without leaving descendants (including adopted descendants) who shall survive me that beneficiary's share of my estate will pass to my other said surviving beneficiary or beneficiaries equally among them if more than one or to their respective descendants.

7. RESIDUE

I direct my Trustees to make over the residue of my estate to Kieren, if he survives me.

8. RESIDUE ON SECOND DEATH

- 8.1 If Kieren does not survive me, but in such event only, I direct my Trustees to make over the residue of my estate to such of my children Matthew and Thomas, as shall survive me, equally between them if more than one.

Signature of Brenda Mary Pound

- 8.2 Should any of my children predecease me leaving descendants (including adopted descendants) who shall survive me each member of a generation of descendants of such predeceasing child shall share equally in the part of my estate, both original and accresced, which would have fallen to its parent, where their parent has also predeceased me.
- 8.3 Should any of my children predecease me without leaving descendants (including adopted descendants) who shall survive me that child's share of my estate will pass to my other said surviving child or children equally among them if more than one or to their respective descendants where any of my said children have also failed to survive me.

9. FALL BACK PROVISION FOR RESIDUE

In the event of the complete failure of any of the above provisions which deal with the residue of my estate and which results in any part or the whole of the residue of my estate being undisposed of and which would otherwise fall into intestacy (the "Undisposed Residue"), then I direct the Trustees to pay and make over the Undisposed Residue to such of my sister, HAZEL SMITH residing at Marros Farm, Marros, Pendine, Carmarthen, SA33 4PN ("Hazel"), and my brother-in-law, ELLIOT ANDREW POUND residing at 36 Gladstone Road, Altrincham, WA14 1NS ("Elliot"), as shall survive me, equally between them if more than one.

10. BENEFICIARIES LACKING CAPACITY

If a beneficiary is under age or incapacitated when their interest in my estate becomes payable, my Trustees shall have power to pay such beneficiary's interest to his or her parent, legal guardian, or any person with the authority to manage the financial affairs of that beneficiary, whose receipt shall be sufficient discharge to my Trustees.

11. RENUNCIATION OF BENEFIT

In the event of any benefit conferred by my Will being renounced in whole or in part the benefit or such part shall pass to the beneficiary or beneficiaries who would have been entitled and on the terms and conditions which would have applied had the beneficiary so renouncing predeceased me.

12. POWERS

My Trustees shall be regarded as gratuitous trustees and shall have all the powers, and rights conferred by Statute or Common Law on gratuitous trustees in Scotland including and without prejudice to the foregoing generality the additional powers contained in Schedule 1 to this Will.

13. IMMUNITIES

- 13.1 My Trustees shall not be liable for depreciation in value of any property in my estate, nor for omissions or errors in judgement, nor for neglect in management, nor for insolvency of debtors, nor for the acts, omissions, neglects or defaults of each other or of any agent employed by them.

Signature of Brenda Mary Pound

- 13.2 This immunity shall not extend to Trustees acting in the course of their business insofar as the liability arises from the Trustees' failure to exercise the degree of care, diligence and skill required by law.

14. DOMICILE

I declare that my domicile is Scottish and that the provisions of my Will shall be interpreted, governed and administered as far as possible under the law of Scotland.

15. FUNERAL WISHES

I wish my body to be cremated and my ashes split into two. I wish for some of my ashes to be given to Hazel, if she survives me to scatter with our parents in Marros, and the rest of my ashes, or all of them if Hazel predeceases me, to be given to Matthew and Thomas.

16. DETAILS OF EXECUTION

This Will consisting of this and the 3 preceding pages, together with Schedules 1 – 2 are executed as follows:

Signature of witness

Signature of Brenda Mary Pound

Full name of witness (print)

Date of signing

Address of witness

Place of signing

SCHEDULE 1

These are the provisions provided for in the foregoing Will by Brenda Mary Pound

1. GENERAL POWERS

My Trustees shall have the fullest powers of and in regard to retention, realisation, investment, appropriation, transfer of property without realisation and management of my estate as if they were absolute owners and not Trustees.

2. NECESSARY ACTS

My Trustees shall have power to do everything they may consider necessary or expedient for the administration of the trust.

3. SPECIFIC POWERS

Without prejudice to these general powers my Trustees shall have the powers set out in the following remaining paragraphs of this schedule.

4. RETENTION

My Trustees may retain, sell, purchase, lease or hire my estate or any part of it.

5. INVESTMENT

My Trustees may invest the whole or any part of my estate in heritable and leasehold property, investments, securities, insurance policies, deposits and other assets of whatever description, whether producing income or not, whether or not falling within the class of investments authorised for trust funds, whether or not payable to bearer, whether or not held in common with other persons, and wherever situated.

6. DIVERSIFICATION

My Trustees shall not be required to diversify the investment of my estate nor be liable for the consequences of investing or keeping my estate invested in or in the shares or obligations of a single business, company or firm or in one asset or one type of asset.

7. INSURANCE POLICIES

My Trustees may effect, maintain and acquire policies of insurance of whatever description and may insure any property on whatever terms they think fit, including on a first loss basis.

8. MANAGEMENT OF HERITAGE

My Trustees may administer and manage any heritable or real property forming part of my estate; may repair, maintain, renew and improve it and erect additional buildings and structures; may grant, vary and terminate leases and rights of tenancy or occupancy; may plant, thin and cut down timber; and may

Signature of Brenda Mary Pound

work or let minerals; all as my Trustees think proper and as if they were absolute owners of the property.

9. BUSINESSES

- 9.1 My Trustees may continue or commence any business, whether alone or in conjunction or in partnership with any other persons, or through any companies, for such period as my Trustees think proper.
- 9.2 My Trustees may employ for the purposes of such business such part of the income or capital as they think proper.
- 9.3 My Trustees may employ any trustee and any other person in any capacity in relation to such business and may pay them suitable remuneration for services, including pension provisions for any employees or their dependants.
- 9.4 My Trustees may entrust to any persons the control and management of such business to such extent as my Trustees think fit.
- 9.5 My Trustees shall exercise only such control or supervision of such business as they think fit.
- 9.6 My Trustees shall be entitled to be relieved from my estate from all personal responsibility for any loss arising from such business operations.
- 9.7 My Trustees shall be entitled to retain personally any remuneration for their services.

10. COMPANIES

- 10.1 My Trustees may promote or concur in the flotation or reconstruction or amalgamation of any company including, but without prejudice to that generality, any company formed to take over any business, company or concern carried on by my Trustees or in which they may be interested, and may subscribe for and hold the debentures, stocks, shares or other scrip or obligations of such company.
- 10.2 My Trustees shall be under no duty to enquire into the conduct of a company in which they are interested unless they have knowledge of circumstances which call for inquiry.

11. BORROW AND LEND

- 11.1 My Trustees may borrow or lend with or without security.
- 11.2 My Trustees may grant or continue any guarantee, indemnity or security for the benefit of any beneficiary, actual or prospective.

12. OCCUPATION BY BENEFICIARIES

- 12.1 My Trustees may lend or allow to be used the whole or any part of my estate at such rate of interest or rent as they consider appropriate, or free of interest or rent, to or by any person who is for the time being entitled to payment of the income of that part of my estate or to whom or for whose benefit that income

Signature of Brenda Mary Pound

may be paid or applied in the exercise of a discretion then available to my Trustees.

- 12.2 My Trustees may acquire property of any description, including property held jointly with other persons, for this purpose.

13. NOMINEES

My Trustees may allow my estate or any part of it to be registered in the name of or held by, or may allow the documents of title to be held by, any person, firm, corporation or other body as nominee or sub-nominee of my Trustees.

14. DELEGATION OF INVESTMENT MANAGEMENT

- 14.1 My Trustees may revocably delegate any power of making, managing, realising or otherwise dealing with any investment or deposit comprised in my estate to any person or persons on such terms as my Trustees think fit.
- 14.2 No trustee shall be responsible for the default of any such agent if the trustee in question employed them in good faith.

15. ADDITIONS

My Trustees may accept as an addition to my estate any other property which may be made over to them.

16. ALLOCATION BETWEEN CAPITAL AND INCOME

- 16.1 There shall be no apportionment between capital and income on any occasion.
- 16.2 My Trustees may decide what is capital and what is income and the proportion in which expenses are to be charged against capital and income respectively.

17. APPROPRIATION

My Trustees may appropriate specific property of any description to represent the whole or part of the share, prospective or otherwise, of any beneficiary at such valuation as my Trustees determine, so that thereafter the particular share shall have the full benefit and the whole risk of the appropriated property.

18. SETTLEMENT

My Trustees may settle with any beneficiary entitled to any part of my estate by conveying to him or her in satisfaction of that entitlement either specific property or money, or partly one and partly the other, as my Trustees think fit and at such valuation as they determine and may compel acceptance accordingly.

19. CONFLICT OF INTEREST

My Trustees may enter into any transaction or do any act otherwise authorised by law or by this will notwithstanding that any trustee is or might be acting with a conflict of interest between such trustee and that trustee as an individual or as trustee of any other trust or any partnership of which a trustee is a partner or any company of which a trustee is a shareholder or director or in

Signature of Brenda Mary Pound

relation to any combination of these capacities provided that the trustee or trustees with whom there is or may be any such conflict is or are not the sole trustee or trustees.

20. PARTICIPATION IN DISCRETION

My Trustees may participate in the exercise of any discretion granted to them notwithstanding that a trustee is or may be a, or the sole, beneficiary in whose favour the discretion is then exercised provided that there is at least one trustee not so favoured.

21. RESIGNATION

My Trustees may resign office notwithstanding any benefit under this will.

22. AGENTS

My Trustees may appoint one or more of their own number to act as solicitor or agent in any other capacity and allow that trustee the same remuneration to which that trustee would have been entitled if not a trustee.

23. ADMINISTRATION ABROAD

My Trustees may carry on the administration of the trust hereby created in some place out of the United Kingdom.

24. RENUNCIATION OF POWERS

My Trustees may renounce for themselves and their successors in office the power to exercise any of the powers in this clause as if the same were vested in them beneficially and not as trustees.

Signature of Brenda Mary Pound

SCHEDULE 2

These are the provisions provided for in the foregoing Will by Brenda Mary Pound

1. All death duties exigible on my death in respect of the Liferented Fund shall be paid from the residue of my estate.
2. The said liferent shall be alimentary, unless my Trustees otherwise resolve, as they are hereby empowered to do at any time before the termination of the said liferent, in relation to the whole or any part of the Liferented Fund.
3. There shall be no apportionment of income between capital and revenue.
4. My Trustees shall be entitled to advance capital to Kieren if they in their sole discretion consider that to be appropriate but this power of advancement shall not be exercised at any time when Kieren is sole Trustee.
5. It is a condition of the liferent that Kieren shall at their sole expense insure, maintain and repair and if necessary renew and rebuild any house which forms part of the Liferented Fund and pay all normal outgoings connected with their occupation thereof including without prejudice to the foregoing generality Council Tax, water and drainage charges and all services.
6. Should Kieren cease to reside in the house or such replacement house as their only main residence for a period exceeding 6 months for reason of requiring long term care, unless my Trustees otherwise resolve, Kieren's interest in the Liferented Fund shall be deemed to have been renounced without further process of law, in which event the terms of Clause 6.3 shall take effect.
7. My Trustees shall have power from time to time and at any time, with the written consent of Kieren, provided Kieren is capable of giving consent:
 - (a) to sell such house;
 - (b) to purchase another house with any part or the whole of such proceeds of sale, for the liferent use and enjoyment of Kieren on the same terms and conditions as aforesaid, and
 - (c) to retain any balance of the proceeds of such sale, (or the whole proceeds thereof in the event that my Trustees do not purchase another house) for the liferent use and enjoyment of Kieren and to pay Kieren the free annual income thereof.

OR

- (d) to make over any balance of the proceeds of such sale, (or the whole proceeds thereof in the event that my Trustees do not purchase another house) to the beneficiaries entitled to the capital of the Liferented Fund in terms of Clause 6.3 of my Will.
8. My Trustees shall have power, in their uncontrolled discretion, to terminate said liferent, in whole or in part, at any time or times, and in which event such part or

Signature of Brenda Mary Pound

whole of the Liferented Fund so set free shall be dealt with in terms of Clause 6.3 of my Will.

9. My Trustees shall have power, in their uncontrolled discretion, if in their opinion the circumstances so warrant, at any time and from time to time throughout the currency of said Liferent to withhold and retain part or the whole of the income arising on the Liferented Fund in any year and to apply the same in part or in whole for the benefit of any one or more of the residuary legatees named in Clause 6.3, or to accumulate any part or the whole of the income so withheld and retain it with the capital of the Liferented Fund.

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